



CHAPTER xxviii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Margate Newbury Totnes the Middlesex Districts Joint Small-pox Hospital District and the District of the Wath and Bolton Gas Board.

A.D. 1916.

[19th July 1916.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2.—(1) So long as the provisions of Article I. of the Order relating to Newbury or the Order relating to Totnes as the case may be shall remain in operation sections twenty-five twenty-six and twenty-seven of the Municipal Corporations Act 1882 and section two hundred and forty-six of the Public Health Act 1875 shall not apply to any accounts of the mayor aldermen and burgesses of the borough of Newbury or of the borough of Totnes as the case may be acting by the council (in this section respectively referred to as “the Newbury Corporation” and “the Totnes Corporation”) or of the treasurer of either of those boroughs or of the officers of the Newbury Corporation or the Totnes Corporation.

Audit of
accounts of
Corporations
of Newbury
and Totnes.

[Ch. xxviii.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1916.

A.D. 1916.
—

(2) Notwithstanding anything contained in the said sections the accounts of the Newbury Corporation for the financial year ended the thirty-first day of March one thousand nine hundred and sixteen shall be audited in accordance with the provisions of Article I. of the Order relating to Newbury.

(3) The accounts of the Totnes Corporation for the financial year ended the thirty-first day of March one thousand nine hundred and sixteen shall be audited as if this Act had not passed.

Short title.

3. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1916.

SCHEDULE.

A.D. 1916.

BOROUGH OF MARGATE.

*Provisional Order for altering the Margate Extension
and Improvement Act 1877 the Margate Corporation Act 1908
and the Local Government Board's Provisional Orders
Confirmation (No. 2) Act 1912.*

*Margate
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Margate ; —

And to all others whom it may concern.

WHEREAS the Borough of Margate (herein-after referred to as "the
Borough") is an Urban District of which the Mayor Aldermen and
Burgesses acting by the Council (herein-after referred to as "the
Corporation") are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Margate Extension
and Improvement Act 1877 the Margate Corporation Act 1908 (which
Acts are herein-after together referred to as "the Local Acts" and
individually as the Act of the year in which it was passed) as altered
by the Margate Order 1912 which was confirmed by the Local
Government Board's Provisional Orders Confirmation (No. 2) Act 1912
(which Order and Act are herein-after respectively referred to as "the
Order" and "the Confirming Act") are in force in the Borough;

40 & 41 Vict.
c. ccvii.
8 Edw. 7.
c. lxxxvii.
2 & 3 Geo. 5.
c. cxxviii.

And whereas by Section 70 of the Act of 1877 the Corporation
were empowered to borrow at interest (not exceeding the rate of five
pounds per centum per annum) moneys for the purposes of that
Act;

And whereas by Article II. of the Order the Corporation were
amongst other things empowered to borrow in order to replace moneys
temporarily applied from other funds of the Corporation in repaying
moneys previously borrowed under the Local Acts and certain other
Local Acts in force in the Borough;

And whereas the Corporation are required by the Margate Coal
Dues Act 1889 in the events and to the extent therein specified to
make good out of the borough fund and borough rate of the Borough

52 & 53 Vict.
c. cxxxii.

[Ch. xxviii.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1916.

A.D. 1916. deficiencies in the income of the Company of Proprietors of Margate
Margate Pier and Harbour (herein-after referred to as "the Pier Company");
Order.

And whereas by Section 19 of the Act of 1908 the Corporation are empowered to pay out of the borough fund of the Borough the expenses therein mentioned;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts and the Confirming Act in the manner herein-after set forth:

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts and the Confirming Act so far as it relates to the Order shall be altered so that the following provisions shall take effect that is to say:—

Alteration of Act of 1877. Art. I. Section 70 of the Act of 1877 shall have effect as if the words "(not exceeding the rate of five pounds per centum per annum)" were omitted therefrom.

Extension of power to re-borrow. Art. II.—(1) The Confirming Act so far as it relates to the Order shall have effect as if the words "any statutory borrowing power as defined by Section 4 of the Act of 1908" were inserted in paragraph (b) of subdivision (1) of Article II. of the Order instead of the words "the Local Acts."

(2) Any moneys borrowed by the Corporation before the date of the Act of Parliament confirming this Order in order to replace moneys which during the twelve months before that date have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power as defined by Section 4 of the Act of 1908 and which at the time of such repayment it was intended to replace by borrowed moneys shall be deemed to have been borrowed under Article II. of the Order as altered by this Order.

Reserve fund for payments to Pier Company. Art. III.—(1) For the purpose of meeting any payments which the Corporation may be required to make to the Pier Company under the provisions of the Margate Coal Dues Act 1889 the Corporation may if they think fit establish a reserve fund (herein-after referred to as "the reserve fund") by setting aside yearly out of the borough fund of the Borough such sums as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the reserve fund amounts to the sum of five thousand pounds Provided that for the

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxviii.]
Provisional Orders Confirmation (No. 2) Act, 1916.

purpose of meeting any such payments to the Pier Company as
aforesaid resort may be had to the reserve fund although such fund
may not at the time have reached or may have been reduced below
the sum of five thousand pounds and that whenever the same shall
amount to that sum the income therefrom shall be carried to the
borough fund of the Borough.

A.D. 1916.

*Margate
Order.*

(2) (a) Subject as herein-after provided the Corporation may
exercise either wholly or partially any statutory borrowing power
possessed by them by using for the purpose any moneys forming part
of the reserve fund.

Use of reserve
fund in exer-
cise of statu-
tory borrow-
ing powers.

(b) The moneys so used shall be repaid to the reserve fund within
the period by the methods and out of the fund rate or revenue within
by and out of which a loan raised under the statutory borrowing power
would be repayable.

(c) Interest shall be paid to the reserve fund on any moneys so
used and for the time being not repaid to the reserve fund. Such
interest shall be calculated at a rate per centum per annum to be
determined by the Corporation and to be equal as nearly as may be
to the rate of interest which would be payable on a loan raised on
mortgage under the statutory borrowing power and shall be paid out
of the fund rate or revenue which would be applicable to the payment
of interest on a loan raised under the statutory borrowing power.

(d) The statutory borrowing power for the purpose of which the
moneys are so used shall be deemed to be exercised by such use as
fully in all respects as if a loan of the same amount had been raised
on mortgage in the exercise of the power and the particulars of the
exercise of the power by such use shall be entered accordingly in the
mortgage register kept by the Corporation.

(3) In this Article the expressions "statutory securities" and
"statutory borrowing power" have the meanings assigned to them by
the Act of 1908.

Art. IV. This Order may be cited as the Margate Order 1916 and
the Order and this Order may be cited together as the Margate Orders
1912 and 1916.

Short titles.

Given under the Seal of Office of the Local Government Board
this Eleventh day of April One thousand nine hundred and
sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

[Ch. xxviii.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1916.

A.D. 1916.

BOROUGH OF NEWBURY.

*Newbury
Order.*

*Provisional Order for altering the Newbury Borough Extension
Act 1878.*

To the Mayor Aldermen and Burgesses of the Borough of
Newbury ; —

And to all others whom it may concern.

41 & 42 Vict.
c. clxxxiv.

WHEREAS the Borough of Newbury (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 and there are in force in the Borough the unrepealed provisions of the Newbury Borough Extension Act 1878 (herein-after referred to as "the Local Act") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

And whereas by Section 64 of the Local Act provision was made for the auditing and examination of the accounts of the receipts and expenditure of the Corporation under that Act by the Borough auditors ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

Audit of
Borough
accounts.

Art. I.—(1) Notwithstanding anything in the Local Act all accounts of the Corporation and of the treasurer of the Borough and of the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a County Council or with a District Council or a Parish Council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxviii.]
Provisional Orders Confirmation (No. 2) Act, 1916.

Sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

A.D. 1916.

*Newbury
Order.*

Provided that for the purposes of this Article the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

(2) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

(b) Pay the reasonable expenses of the Corporation in connexion with the presentation of the freedom of the Borough to persons whom they resolve to admit as honorary freemen in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough.

Art. II. This Order may be cited as the Newbury Order 1916.

Short title.

Given under the Seal of Office of the Local Government Board
this Tenth day of March One thousand nine hundred and
sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

A.D. 1916.

BOROUGH OF TOTNES.

Totnes Order. *Provisional Order for altering the Totnes Improvement Act
 1845 and the Local Government Board's Provisional
 Orders Confirmation (No. 11) Act 1897.*

To the Mayor Aldermen and Burgesses of the Borough of
 Totnes; —

And to all others whom it may concern.

8 & 9 Vict.
 c. cxxxiv.

60 & 61 Vict.
 c. cxxxviii.

WHEREAS the Borough of Totnes (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 and there are in force in the Borough the unrepealed provisions of the Totnes Improvement Act 1845 (herein-after referred to as "the Local Act") as altered by the Borough of Totnes (Extension) Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1897 (which Order and Act are herein-after respectively referred to as "the Order of 1897" and "the Confirming Act of 1897") and by the Totnes Order 1906 which was duly confirmed by Parliament but which does not affect the subject-matter of this Order;

And whereas by Section 13 of the Local Act provision was made for the rendering of accounts of receipts and expenditure of the moneys received by officers of the Corporation and by subdivision (3) of Article XVII. of the Order of 1897 it was provided that certain accounts required to be kept by the Local Act as altered by that Order should be kept as part of the district fund account and should be audited examined and published in like manner as the accounts of the Corporation acting as the Urban District Council under the Public Health Act 1875;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act and the Confirming Act of 1897 in the manner herein-after set forth:

38 & 39 Vict.
 c. 55.

51 & 52 Vict.
 c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 by Section 59 of the Local Government Act 1888 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxviii.]
Provisional Orders Confirmation (No. 2) Act, 1916.

altered as aforesaid and the Confirming Act of 1897 so far as it relates to the Order of 1897 shall be altered so that the following provisions shall take effect that is to say:—

Art. I.—(1) Notwithstanding anything in the Local Act or in the Order of 1897 all accounts of the Corporation and of the treasurer of the Borough and of the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a County Council or with a District Council or a Parish Council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under Sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

A.D. 1916.
Totnes Order.

Audit of
Borough
accounts.

Provided that for the purposes of this Article the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

(2) Nothing in subdivision (1) of this Article shall apply to the audit of the accounts of the Corporation for the financial year ended the Thirty-first day of March One thousand nine hundred and sixteen.

(3) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

[Ch. xxviii.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1916.

A.D. 1916.
 Totnes Order.

- (b) Pay the reasonable expenses of the Corporation in connexion with the presentation of the freedom of the Borough to persons whom they resolve to admit as honorary freemen in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough;
- (c) Make the customary payments not exceeding twenty pounds in any year in connexion with the election of the Mayor of the Borough and towards the expenses of the town band.

Short title.

Art. II. This Order may be cited as the Totnes Order 1916.

Given under the Seal of Office of the Local Government Board
 this Thirty-first day of March One thousand nine hundred and
 sixteen.

(L.S.)

WALTER H. LONG President.
 H. C. MONRO Secretary.

**MIDDLESEX DISTRICTS JOINT SMALL-POX
 HOSPITAL DISTRICT.**

*Middlesex
 Districts
 Small-pox
 Hospital
 Order.*

Provisional Order for altering certain Confirming Acts.

To the Middlesex Districts Joint Small-pox Hospital Board;—
 To the County Council of Middlesex;—

To the Urban District Council of each of the Urban Districts of
 Acton Brentford Chiswick Edmonton Enfield Feltham Friern
 Barnet Greenford Hampton Wick Hanwell Harrow-on-the-Hill
 Hendon Southgate Staines Tottenham Wealdstone Wembley
 and Wood Green;—

And to all others whom it may concern.

WHEREAS by virtue of the Middlesex Districts Joint Small-pox
 Hospital Orders 1905 to 1915 which were respectively confirmed by
 the Local Government Board's Provisional Orders Confirmation (No. 14)
 Act 1905 the Local Government Board's Provisional Orders Confirmation
 (No. 6) Act 1908 the Local Government Board's Provisional Orders
 Confirmation (No. 3) Act 1910 the Local Government Board's Pro-
 visional Orders Confirmation (No. 9) Act 1911 and the Local Govern-
 ment Board's Provisional Orders Confirmation (No. 9) Act 1915 (each
 of which Orders is herein-after referred to as the Order of the year in
 which it was made and all which Orders and Confirming Acts are

5 Edw. 7.
 c. cix.
 8 Edw. 7.
 c. cxlvi.
 10 Edw. 7 &
 1 Geo. 5.
 c. lxxx.
 1 & 2 Geo. 5.
 c. cxlvii.
 5 & 6 Geo. 5.
 c. xciv.

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxviii.]
Provisional Orders Confirmation (No. 2) Act, 1916.

herein-after respectively referred to as "the Orders" and "the Confirming Acts") the Urban Districts of Acton Brentford Chiswick Edmonton Enfield Feltham Friern Barnet Greenford Hampton Wick Hanwell Harrow-on-the-Hill Southgate Staines Tottenham Wealdstone Wembley and Wood Green constitute the United District called the Middlesex Districts Joint Small-pox Hospital District (herein-after referred to as "the United District") of which the governing body is the Middlesex Districts Joint Small-pox Hospital Board (herein-after referred to as "the Joint Board");

A.D. 1916.

*Middlesex
Districts
Small-pox
Hospital
Order.*

And whereas it is expedient that the Urban District of Hendon in the County of Middlesex should be included in the United District and that the Orders should be altered as herein-after provided :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Confirming Acts so far as they relate to the Orders shall be altered as follows :—

38 & 39 Vict.
c. 55.

Art. I. The United District shall be extended so as to include the Urban District of Hendon and subject to the provisions of this Order references in the Orders to the Constituent Districts shall be deemed to include the Urban District of Hendon and references in the Orders to the Constituent Authorities shall be deemed to include the Urban District Council of Hendon.

Extension
of United
District.

Art. II. The provisions of Article XI. of the Order of 1905 shall apply to the first election by the Urban District Council of Hendon of the elective member to represent that Council on the Joint Board as if the election related to the filling of a vacancy occurring at the commencement of this Order.

Election of
elective mem-
ber by Dis-
trict Council.

Art. III. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the commencement of this Order or any expense liability or accounts arising out of incidental to or connected with or affected by the inclusion of the Urban District of Hendon in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the commencement of this Order.

Adjustment.

Art. IV. This Order may be cited as the Middlesex Districts Joint Small-pox Hospital Order 1916 and the Orders and this Order may be

Short titles.

[Ch. xxviii.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1916.

A.D. 1916. cited together as the Middlesex Districts Joint Small-pox Hospital
Orders 1905 to 1916.

*Middlesex
Districts
Small-pox
Hospital
Order.*

Given under the Seal of Office of the Local Government Board
this Fourth day of April One thousand nine hundred and
sixteen.

(L.S.)

WALTER H. LONG President.
H. C. MONRO Secretary.

URBAN DISTRICTS OF BOLTON-UPON-DEARNE
THURNSCOE AND WATH-UPON-DEARNE.

*Wath
Bolton and
Thurnscoe
Gas Board
Order.*

*Provisional Order for partially repealing and altering the
Wath and Bolton Gas Board Act 1908.*

To the Wath and Bolton Gas Board ; —

To the Urban District Council of each of the Urban Districts of
Bolton-upon-Dearne Thurnscoe and Wath-upon-Dearne ; —

And to all others whom it may concern.

8 Edw. 7.
c. xciii.

WHEREAS by virtue of the Wath and Bolton Gas Board Act 1908
(herein-after referred to as "the Local Act") a joint board was
constituted and incorporated under the name and style of the Wath
and Bolton Gas Board (herein-after referred to as "the Gas Board")
consisting of ten members of whom four are elected by the Bolton-
upon-Dearne Urban District Council (herein-after referred to as "the
Bolton Council") and six are elected by the Wath-upon-Dearne Urban
District Council (herein-after referred to as "the Wath Council") for
the purpose of acquiring the undertaking of the Wath-upon-Dearne
and District Gas Company Limited of manufacturing gas and of
supplying gas within the limits of supply set forth in the Fourth
Schedule to the Local Act which limits were therein expressed to be
the Urban Districts of Wath-upon-Dearne and Bolton-upon-Dearne
the Parish of Thurnscoe and so much of the Parish or Township of
Brampton-Bierlow as is therein described ;

And whereas by the County of the West Riding of Yorkshire
(Thurnscoe Urban District) Confirmation Order 1908 part of the
Parish of Thurnscoe was constituted the Urban District of Thurnscoe
and the remainder of the Parish of Thurnscoe was added to and
became part of the Parish of Clayton with Frickley ;

And whereas by the Local Act the Gas Board are empowered to
purchase lands by agreement but are prohibited from using any lands
for the purpose of manufacturing gas or residual products except the
lands described in the Third Schedule to the Local Act ;

[6 & 7 GEO. 5.] *Local Government Board's* [Ch. xxviii.]
Provisional Orders Confirmation (No. 2) Act, 1916.

And whereas in pursuance of the Local Act the Gas Board have acquired by agreement the land described in the Schedule to this Order ;

A.D. 1916.

*Wath
Bolton and
Thurnscoe
Gas Board
Order.*

And whereas the Bolton Council the Wath Council and the Urban District Council of Thurnscoe (herein-after referred to as "the Thurnscoe Council") have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. Notwithstanding anything in the Local Act the Gas Board may hold and use the land described in the Schedule to this Order for all or any of the purposes of their gas undertaking including the manufacture and storage of gas and residual products as if such land was included in and formed part of the lands described in the Third Schedule to the Local Act and the provisions of the Local Act shall apply and have effect accordingly.

Use of additional land
for gas purposes.

Art. II.—(1) On and after the First day of April One thousand nine hundred and seventeen (herein-after referred to as "the appointed day")—

Altering
constitution
of Gas
Board.

(a) The Thurnscoe Council shall become and be a constituent council of the Gas Board and shall be represented on the Gas Board by two members who shall be elected by the Thurnscoe Council from among themselves and the number of members of the Gas Board shall accordingly be increased from ten to twelve ;

(b) The name and style of the Gas Board shall be changed to "the Wath Bolton and Thurnscoe Gas Board" ;

(c) All the provisions of the Local Act which are at the appointed day applicable to the Bolton Council and the Wath Council as constituent councils of the Gas Board to the districts of those councils and to members of the Gas Board representing those councils shall thereafter apply with any necessary modifications to the Thurnscoe Council to the district of that council and to members of the Gas Board representing that council ;

(d) The provisions of Sections 49 57 and 58 of the Local Act so far as they relate to the area of the Thurnscoe Urban District shall be repealed.

[Ch. xxviii.] *Local Government Board's* [6 & 7 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1916.

A.D. 1916.

*Wath
Bolton and
Thurnscoe
Gas Board
Order.*

(2) The first election of the two members of the Gas Board to represent in pursuance of sub-division (1) of this Article the Thurnscoe Council shall take place at a meeting of that council to be held before the appointed day and the members so elected shall come into office on the appointed day and shall subject to the provisions of the Local Act made applicable by this Article continue to hold office as if they had been elected in pursuance of subsection (2) of Section 6 of the Local Act at a meeting of the council held within twenty-eight days after the Thirty-first day of March One thousand nine hundred and seventeen.

Expenses of
Order.

Art. III. The costs charges and expenses preliminary to and of and incidental to obtaining this Order or otherwise in relation thereto shall be paid by the Gas Board:

Provided that so far as the said costs charges and expenses are attributable to the inclusion of the Thurnscoe Council as a constituent council of the Gas Board one-half of those costs charges and expenses shall be repaid to the Gas Board by the Thurnscoe Council.

Short title.

Art. IV. This Order may be cited as the Wath Bolton and Thurnscoe Gas Board Order 1916.

The SCHEDULE above referred to.

All that piece of land situate in the Township of Wath-upon-Dearne containing one and a half acres or thereabouts and bounded on the west in part by Station Road and in other part by other lands of the Gas Board on the south in part by lands belonging to the Gas Board and in the remaining part by a road belonging to the Sheffield and South Yorkshire Navigation Company on the east by property belonging or reputed to belong to William Hoyland Gawtress and on the north by the Brook Dyke.

Given under the Seal of Office of the Local Government Board
this Third day of April One thousand nine hundred and
sixteen.

(L.S.)

WALTER H. LONG President.

H. C. MONRO Secretary.

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